

Smt. Vijaya Kurrey vs Vinod Kurrey on 1 April, 2022

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FA(MAT) No. 74 of 2021

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HIGH COURT OF CHHATTISGARH, BILASPUR

FA(MAT) No. 74 of 2021

- Smt. Vijaya Kurrey W/o Shri Vinod Kurrey Aged About 28 Years D/o Shri H.L. Ratre, Working As Divisional Forest Officer, Raigarh, District Raigarh(C.G.), Permanent R/o D-66, Guru Ghasidasa Colony, New Rajendra Nagar, Raipur, Tahsil And District- Raipur (C.G.)

---- Petitioner

Versus

- Vinod Kurrey S/o Shri N. D. Kurrey Aged About 32 Years R/o Near Sanivani Care Hospital, Dawda Colony, Raipur, Tahsil And District Raipur (C.G.)

---- Respondent

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---- Respondent

For Appellant : Shri V.R. Tiwari, Senior Advocate
with Shri Ashish Gupta and Shri Atul
Kesharwani, Advocate

For Respondent : Shri Rituraj Burman, Advocate

Per Goutam Bhaduri, J.

01/04/20 22 Heard.

1. Since the common facts and grounds are involved in both the appeals they are being considered and decided by this common order.

2. The facts of the case in nutshell is that marriage of the appellant and respondent was solemnized on 26.12.2012. Thereafter, the marriage could not go along and with passage of time petition was filed by the husband namely Vinod Kurrey for restitution of conjugal rights whereas the wife filed the petition for divorce. The learned Family Court heard both the cases together and application filed by the wife for divorce was dismissed and application filed by the husband for restitution of conjugal rights was allowed. Aggrieved by the impugned order two separate appeals were filed by wife Smt. Vijaya Kurrey before this Court. Thereafter, when the cases came up for hearing before this Court on 29.03.2022, the parties were present in person before this Court and they were directed to go before the mediator to reconcile or for separation. The mediation report has been received and subsequently application under Section 13-B of the Hindu Marriage Act, 1955 for dissolution of marriage by mutual consent has also been filed.

3. Perusal of the application under Section 13-B of the Hindu Marriage Act, 1955 for dissolution of marriage by mutual consent purports that they both have decided to part their ways as much as they cannot live together. During the hearing, both the parties are present in person before this Court and they submit that they are residing separately from 29.08.2015. Further perusal of application under Section 13-B of Hindu Marriage Act purports that an amount of Rs. 20,00,000/- for one time settlement by two separate cheques bearing No. 546372 and 546373 of Rs. 10,00,000/- each of State Bank of India, Telibandha branch is settled to be given to the respondent. It is further submitted that they have decided to dissolve the marriage in as much as there is no chance of any reconciliation for different reasons.

4. The application under section 13-B of the Hindu Marriage Act contains the signature of both the parties and also the counsel. The application for mutual divorce though was filed on 30.03.2022, but it is admitted position that both the parties are living separately from 29.08.2015 i.e. from last 7 years and different proceedings were also pending. It is further prayed for waiver of cooling-off period of six months under Section 13-B of the Hindu Marriage Act, as much as considerable time has passed till date till their separation.

5. In this context, the text of section 13-B of the Hindu Marriage Act would be relevant here and quoted below:-

"13-B. Divorce by mutual consent.-- (1) Subject to the provisions of this Act a petition for dissolution of marriage by a decree of divorce may be presented to the district court by both the parties to a marriage together, whether such marriage was solemnised before or after the commencement of the Marriage Laws (Amendment) Act, 1976, on the ground that they have been living separately for a period of one year or more, that they have not been able to live together and that they have mutually agreed that the marriage should be dissolved.

(2) On the motion of both the parties made not earlier than six months after the date of the presentation of the petition referred to in sub-section(1) and not later than eighteen months after the said date, if the period is not withdrawn in the meantime, the Court shall, on being satisfied, after hearing the parties and after making such inquiry as it thinks fit, that a marriage has been solemnised and that the averments in the petition are true, pass a decree of divorce declaring the marriage to be dissolved with effect from the date of the decree."

6. The Supreme Court in a case law reported in (2017) 7 SCC page 746

- Amardeep Singh Vs. Harveen Kaur has held that in the year 1976, the concept of divorce by mutual consent was introduced and however, section 13-B(2) contains a bar to divorce being granted before six months of time elapsing after filing of the divorce petition by mutual consent. The said period was laid down to enable the parties to have a rethink so that the court grant divorce by mutual consent only if there is no chance for reconciliation. The Supreme Court has further laid down the following principles at para 19 :

"19. Applying the above to the present situation, we are of the view that where the court dealing with a matter is satisfied that a case is made out to waive the statutory period under Section 13-B(2), it can do so after considering the following:

(i) the statutory period of six months specified in Section 13-B(2), in addition to the statutory period of one year under Section 13-B(1) of separation of parties is already over before the first motion itself;

(ii) all efforts for mediation/conciliation including efforts in terms of Order 32-A Rule 3CPC/Section 23(2) of the Act/Section 9 of the Family Courts Act to reunite the parties have failed and there is no likelihood of success in that direction by any further efforts;

(iii) the parties have genuinely settled their differences including alimony, custody of child or any other pending issues between the parties;

(iv) the waiting period will only prolong their agony."

7. Applying the aforesaid dictum in the present case, since the parties are residing separately from last seven years i.e. from 2015 and the record of the Court below also shows that there is no chance of reconciliation, therefore, by way of settlement an amount of Rs. 20,00,000/- is paid by two separate cheques to the respondent before this Court. The said condition of the application, therefore, fortified with the intent of the parties that they cannot go along together in their marital journey. Consequently, we deem it proper that since the parties are residing separately from last seven years and mutual divorce application has been filed before this Court by both the parties expressing their views of mutual divorce, we deem it proper to waive off colling-off period of 6 months and allow the application under Section 13-B of the Hindu Marriage Act for mutual divorce. Accordingly, it is ordered that the marriage between the parties dated 26.12.2012 be dissolved by decree of divorce by mutual consent.

8. A decree be drawn accordingly.

Sd/-

(Goutam Bhaduri)

Judge

Jyoti

Sd/-

(Sanjay S. Agrawal)

Judge